tology of this form must still be studied. In his case the patient was subject to repeated and severe apoplectic or apoplectiform attacks while the course of the disease extended over six years.

In the case above mentioned the symptoms were somewhat different. No attacks, and a duration of between two and three years.

May not the endarteritis have been of syphilitic origin?

Mendel denies syphilis most decidedly in his case. I believe the absence of any other lesion pointing to this disease renders it probable that it was not the cause in ours, although the previous history of the woman rendered such a cause very probable.

OCCASIONAL NOTES OF THE QUARTER.

The Case of Gouldstone.

First and foremost among the Occasional Notes of the Quarter the case of Gouldstone calls for comment. The observations to be made upon it will be ranged under the following heads: First, the history of the man and his crime; second, the examination in Court of skilled witnesses, with remarks on the futility of such examinations from a scientific point of view; and thirdly, the question of the legal dicta on responsibility.

First, then, the history of the patient.

His mother was insane at the time of his birth, and his mother's sister was, and is still, insane. In both these women there was well-marked melancholia, with the idea that ruin was coming upon them.

On the father's side, the father's sister was insane, and two cousins, one of whom died in an asylum, probably of general paralysis.

Thus Gouldstone came of doubly nervous parents. It may be said, Why have none of his brothers or sisters suffered from neurosis? I can only say I cannot tell, but that it may simply be but the want of the spark to cause the explosion. In Gouldstone the spark fell.

Gouldstone managed to make a fair living; he had no serious illnesses, and was a quiet, sober man. He seemed inclined to a solitary rather than a social life, and even

before his marriage he preferred to be alone rather than with others.

He had no special tastes and no special ability. His employment was that of a fitter of grates which had been sent up from the foundry. This required only steady, quiet, unoriginal work.

He was not emotionally religious, but went to church when he had a decent coat on his back.

He married a young woman of his own age and station, and in no way changed his ways.

He was punctual at his work, careful in its performance, and regular in his return home when it was done. He continued to go to church as long as his wife could go with him, and as long as his clothes were, to his idea, good enough.

When he had children at home he spent his spare time in playing with them, and was more fond than most artizans of his family, and cared for no other society.

His fellow-workmen looked upon him as odd and unsocial. He never made chums.

He would, like Joseph of old, tell strange dreams he had had, and he gave his fellow-workmen the idea that he half-believed what he told them. His dreams displayed heaven opened, and he heard God speaking to him.

At times he had dreadful dreams, and he had very severe pains in his head.

Besides these symptoms he had increasing trouble from a double hernia, and at times he said he wished he were dead. With his fellows he would talk about the easiest way to die, and whether it would be painless to be crushed by the lift. It can be seen from his fellow-workmen's letter that they thought him strange.

During the last year or two he managed to live and keep his family, but he rarely had animal food, and then in very small quantities, so that this nervously weak man was fighting a hard battle with feeble support.

His wife's last confinement approached, and he was in no way changed. When he heard there were twins he was not unnaturally disturbed, and went to his work on the next day, but on the annual holiday of the firm he did not go with his fellow-workmen to the bean-feast, but was at home, and appeared moody, and at times was in tears. It came out afterwards that at this time he—like his mother—contemplated suicide. He did not make any noisy, blus-

tering threats, but quietly rested while the morbid mental growth developed.

On the day of the killing he went to work as usual, and, as far as is known, he did his work well. But he was disturbed and restless in himself, and thought of his misery, and decided insanely to alter, but not to end it.

He even considered whether he should use a revolver or not. He is said to have taken more drink than usual to nerve him for the effort.

And now we come to the killing of his children. There was the calm action of a most determined criminal, an enthusiast, or a lunatic.

No passion, no haste, only steady, purposeful, but unreasonable slaughter.

He had worked out the problem in his weak mind that it were better for the children to go straight to heaven, and he did what he considered the best for them. If he had killed himself after the act, no one would have had a doubt about the insanity of the act, but he lived without seeming to care. That he knew he killed his children none can deny—he owned it more than once—and equally he knew that hanging was the penalty of murder.

He spoke and acted as if he had done a kind act to his wife, and bade her an affectionate farewell.

After the killing of his children, and his conveyance to the House of Detention, he seemed to be suffering from melancholia; so said the doctor, though for some reason his evidence was never given in Court.

He was not, like the passionate criminal, overpowered by the sense of his deed. He slept fairly, and took his food.

In the interview I had with him he talked in a calm, uninterested way, quite unlike the callousness of a villain or the justification of the pretended lunatic. He did not try in one way or another to excuse himself, or make light of his deed. He talked as if he were narrating something which had occurred to someone else.

In this his manner contrasted markedly with that of a murderer I once before examined, who was only too anxious to make the most of his nervous relations, his own injuries to his head, and of forgetfulness of his act. The man is a physically weak man, with a small head, and with features of a dull, but not brutal type. I would say, too, of his brothers who appeared in Court, that they all had the appear-

ance of dull men, and their examination showed them to be intellectually weak and slow of perception.

I would, then, sum up the case in this way. A man with strong direct inheritance of insanity is reduced by bad feeding, pain, and worry, to a condition of misery that was diseased. It was melancholia out of relation to its causes and its end. The whole thing was as is general in mental disorder—a morbid development, not a devilish afflatus.

As to my examination in Court, I can only say that the skill of the prosecuting counsel and the ruling of the Judge made my opinion appear to be that the prisoner was responsible. I could only say "yes" when asked if the man knew he had killed—I objected to the term "murdered"—his children, and again I could only say "yes" when asked if he knew the punishment he had incurred. It would have been folly, as well as false, for me to have said otherwise.

But I distinctly added that I believed him to be insane at the time the act was committed. One most important point was made out of the fact that I said that I could not certify from facts observed by myself in my interview of from 20 minutes to half-an-hour.

I have been blamed for this, but I would defend myself by saying that counsel strictly bound me down to answer simply and solely as to facts observed by myself. Some say that, as a physician, I was bound to take the history and the antecedent facts as part of the facts observed. This I must demur to, as in the signing of a certificate the facts observed by myself must be quite independent of information gained from others. I own this is often a foolish necessity of the law, but at present it exists. I did add that with the history and from the facts I believed him to be insane, but I was told by the Judge that this was not for me, but for the jury to decide. And the Judge's ruling quite outweighed my opinion.

Surely the jury have a right to be instructed by experts as well as by lawyers. Insanity and its various forms are not less difficult to understand than forms of law.

It would have been better that there should have been a contest of medical opinion, so that the jury should have heard the points for and against the insanity, rather than they should be wholly uninformed. It may seem strange that medical opinions should differ as they are seen to do in contested trials; but I for one do not see in this difference of

opinion untruth or dishonour. Medical knowledge is not as yet finite, and there are at least two sides to a shield.

I would suggest that, in any criminal case in which the medical officer of the House of Detention states any doubt about the sanity of a prisoner, the trial should not take place till several months' observation have transpired; thus a great deal of heart-burning would be saved, and some lunatics would not be tried as criminals.

Lastly, as to the test of sanity.

I fear the want of any exact knowledge of the causes of insanity must for very long leave us without any definition of the condition.

The lawyer will say, "Let common sense decide who are responsible, and what is to be meant by responsibility."

I know the most important safeguards are needed by society, so that the weak should be kept from becoming wicked, but at the same time I must protest against persons being punished for what they cannot help.

First, I would do away with all definitions of responsibility, and let each case be tried on its own merits. For just as a man is sane or insane in relation to his past history and to his surroundings, and not according to any standard that can be set up, so a man is responsible or not for his acts, according as they are the natural outcome of his uncurbed passions or are due to diseased conditions.

I grant that harm has been done in several ways by the medical expert, in too often and too indiscriminately dragging in such rare explanations as insane impulses alone.

Again, insanity is generally looked upon as like other acute diseases, which can be as readily diagnosed as fevers or heart disease.

It will not be understood in its criminal relationship till it is looked upon merely as the morbid life-growth from the diseased germ. The whole life has tended to irregularity, and in many, direct insane inheritance must be admitted to play a chief part in its production.

The subject is unsatisfactory, as may at once be seen from the different ways it is viewed by the public.

The suicide is always considered to be insane.

The testator, again, is practically considered sane, but it may be shown that he was insane without incurring odium.

But if a criminal is defended as insane, his defender runs a great chance of being looked at as criminal also.

Finally, are we to be bound by any definitions in giving our opinion? I should say "No." We have got rid of "delusions" as a necessary part of insanity. It is now, moreover, admitted that a "knowledge of right and wrong" is not necessary, and the question of loss of self-control and impulses is so delicate a one as to make it dangerous for an expert to attach much weight to it in giving evidence.

I am free to admit the fault lies in great part in our defective knowledge, but is also partly due to the habits of the law in exacting definitions from medical witnesses.

We can no more define insanity than we can by definition give an impression of a rainbow or a landscape.

GEO. H. SAVAGE.

The Case of Cole, and the Legal Procedure in ascertaining the Mental Condition of Prisoners.

It would be difficult indeed to conceive any circumstances more calculated to bring English Criminal Law into contempt than the results of the trials of Gouldstone and Cole for wilful murder. Our only consolation is that such pitiful exhibitions of the working of our present judicial machinery, in cases in which the plea of insanity is set up, may lead to some practical reform therein. Had any commentary been desired on the necessity of carrying out the Resolution* passed at the recent Annual Meeting of our Association, under the presidency of Dr. Orange, and again at the October meeting of the Metropolitan Branch of the British Medical Association, such commentary, written in letters of blood, has indeed been supplied by the occurrence of these two trials in rapid succession.

The great object of this Resolution is to secure a full and

* "That prisoners suspected of being mentally deranged should be examined by competent medical men as soon after the commission of the crime with which they are charged as possible, and that the examination should be provided for by the Treasury, in a manner similar to that in which counsel for the prosecution is provided. It is suggested that the examiners should be the medical officer of the prison, the medical officer of the County Asylum or Hospital for the Insane in the neighbourhood, and a medical practitioner of standing in the town where the prison is situated; that the three medical men shall, *after consulting together*, draw up a *joint* report, to be given to the prosecuting counsel, the cost being borne by the public purse, inasmuch as it is useless to tell an insane man that the burden of proving himself insane lies upon himself." (See Journal, Oct., 1883, p. 451).

deliberate examination of the accused before instead of after his trial, by competent medical men. In the cases of Gouldstone and Cole, the result to them, it is true, would have been the same, but with how much greater propriety, dignity, and economy! We should have been spared the spectacle of judges solemnly condemning to death, and clearly indicating it to be their opinion that it was a just death, men who were lunatics. We might also, perhaps, have been spared the spectacle of the oracle in Printing House Square gloating over what is regarded as the courageous action of juries in supporting the law against the wild and dangerous theories of "mad doctors." Had the deliberate examination we urge been made in the case of Gouldstone, instead of one of some twenty minutes at the eleventh hour (the deed was committed at least five months before), the man's mental condition could have been carefully tested without haste; and in the case of Cole the same course would have exposed his insane condition for years previously, and all the facts bearing upon it would have been procured at leisure. Important in such a case, also, is the circumstance that his wife could not give evidence in court, while her intimate knowledge of his history would have been of the highest value to a medical commission. Again, the law requires a man in such instances to prove himself a lunatic; but is not this a mockery of justice? How can a poor prisoner afford to pay? Counsel may, indeed, be assigned to defend the prisoner too poor to pay, but this is at the last moment, and what possible chance has he of doing justice to his client? None; for it is then too late to make a skilled inquiry into and study of the facts of most value in the determination of the prisoner's insanity. The effect of this Resolution would be to prevent a repetition of circumstances that make the interference of the Home Secretary imperative; for, we repeat, it cannot be other than prejudicial to the respect that we should always wish to see entertained for courts of law, to go on continually convicting and sentencing lunatics to the gallows, and then reprieving them—a game which may be all very well for cats and mice, but is scarcely worthy of being engaged in by those who uphold and those who break the law.

Nor are these trials less remarkable as commentaries upon the proper mode of understanding and interpreting the legal test of insanity to which, truth to say, we are almost weary of referring. As those who have read Mr. Justice Stephen's work on Criminal Law, reviewed in this Journal in July

last, are well aware, he reads between the lines of the *dicta* of the Judges of 1843, and charms his psychological readers with the conclusion that the knowledge of right and wrong does not merely refer to the law of the land, but involves the question whether the accused was able to judge of the moral character of the act at the time he committed it, not merely in an abstract sense, but for himself, under the special circumstances of his own delusion or loss of control.

So liberal a construction of the test seemed to open the way to a sort of compromise between medical and legal opinions. Now, what from this point of view is so noteworthy, is that neither of the judges who presided over these trials (Mr. Justice Day and Mr. Justice Denman) appear to have had the faintest idea of such an interpretation of the terms. On the contrary, they obviously understood them in the baldest, most literal manner possible, but not otherwise, we are bound to say, that we supposed that they would understand them. Thus, Mr. Justice Denman, in addressing Cole, told him he could not doubt that he knew he was doing wrong. "You knew," he added, by way of explanation, "that you acted contrary to the law of this country." Whatever loss of control there might be was due to "passion." His Lordship did not, with Sir James Stephen, say that any one would fall within the description of not knowing he was doing wrong "who was deprived by disease affecting the mind of the power of passing a rational judgment *on the moral character* of the act which he meant to do" ("Criminal Law," Vol. ii., p. 163). Nor did he tell the jury that the law when properly construed allows that "*a man who, by reason of mental disease, is prevented from controlling his own conduct, is not responsible for what he does*" (p. 167); nor yet that if a man's succession of insane thoughts is so rapid as to confuse him and render him unequal to the effort of calm sustained thought, "*he cannot be said to know, or have a capacity of knowing, that the act which he proposes to do is wrong*" (*Op. cit.*). That such is, after all, the proper way of understanding the *dicta* of the judges was equally foreign to the mind of Mr. Justice Day. The judges succeeded also in conveying to the juries the impression that they must take the meaning of the terms in question in the sense in which they have been hitherto understood. All we have to say on this aspect of the matter is, that either official sanction must be given to the interpretation of Mr. Justice Stephen, or the words themselves must be so altered as to make their mean-

ing plain to jurymen, and not only to them but to the judges themselves. The difficulty, however, presents itself that, not only do most judges lay down the law in the old-fashioned sense, but they do not conceal their sympathy with this interpretation, and they would regard it as a subterfuge were a medical witness to reply—"Yes," in the sense attached to the words by Sir James Stephen to the question—"Did the prisoner know that he was doing wrong?" In Gouldstone's case, for instance, Dr. Savage felt that to do so would be an evasion of the real meaning attached by the Court to the expression, and unworthy of a scientific witness.

Another point to which one of these cases forcibly calls attention, is the neglect of the obvious symptoms of insanity in a man from whom homicidal acts might have at any time been expected. From what has transpired during and since his trial, we find that Cole was in good work up to 1877, and attentive to his wife and children; that then he fell out of work, left home to seek it, and was found by the police, who took him to the Croydon workhouse infirmary as a wandering lunatic. When his wife went to see him he looked ill and strange, and did not know her; he thought she was dead, and that he was there for killing her. Unfortunately, instead of being placed under proper medical treatment in an asylum, he was allowed to go home in a week's time, and frightened his wife by his mad actions, nailing down the windows, &c., and placing a large knife under his pillow. The insane suspicions which marked his case then have never left him, and the wife had to earn a living by caning chairs, which he would sometimes smash to pieces, the reason assigned being that she was electrifying him. At night he was sleepless, and would walk the room, hearing imaginary noises, and declaring that strange men were concealed in the house. A medical man saw him in 1879, and said he was dangerous, that everything must be kept out of his way, and that he couldn't understand why he had been allowed to go home from the workhouse instead of being sent to an asylum. So he went on, fancying when in the house that his wife was trying to poison him, and when out of it that people were watching him in the street, and even assaulting them on this ground. His wife expected that he would commit some violent act, and that she would probably be the victim, but she does not appear to have thought he would injure their child, of whom he was very fond. The poor woman applied to the magistrates, but they comforted her by telling her that

they could do nothing till he had committed some act. They referred her, however, to the relieving officer, and in consequence the parish doctor examined Cole, and gave her a certificate on which he was removed to the infirmary. Here was a second opportunity for doing something, taking care of the lunatic, and averting a dreadful catastrophe. But in vain. He was sent out in two days as mad as ever, and his wife, in mortal fear, called in the doctor, and he attended him at home. Soon after the man killed his child. All the day he had been walking about the house with a hammer and chisel, following his wife, who eventually managed to take them from him and conceal them. The wife at last went for a policeman, and when at the gate heard a noise in the house which induced her to return, when she found he had done the deed for which he was tried, and which we maintain might and ought to have been prevented by placing him in an asylum long before. This is the moral of the story. We have no desire to ignore the fact that Cole was an intemperate man. But we are satisfied that he was a sober man up to the time that he became insane in 1877, and that his giving way to drink was one of the symptoms of his madness, although doubtless a further aggravation of it. But while it may be impossible to gauge with precision his moral responsibility in relation to the intensity and continuance of his mental disorder, proof is not wanting that he had been sober for at least a week before the fatal act was committed. In a word, this was not the result of drink, but the outcome of a long, lasting state of delusional insanity. Had he joined the Blue Ribbon Army for months before, his delusions and their logical development in violence would have been the same. Add to this, that in consequence of his inability to earn a livelihood through his mental infirmity, he was wretchedly poor, and his brain was consequently ill-nourished, and rendered more and more a prey to suspicion.

The conclusion, then, to which we earnestly draw attention, in the interests alike of the law, of life, and of the lunatic, is the necessity of reforming the mode of Legal Procedure in ascertaining the Mental Condition of Prisoners.

D. H. T.